

trust arose, and, the trustees having paid no consideration, the equitable interest resulted (*c*).

27. **There must be a cestui que trust.** — A trust must be for the benefit of *some person or persons*, and if this ingredient be wanting, as in a trust for keeping up family tombs, the trust is void (*d*). [But a direction to an executor to apply a sum of money in erecting a monument to a person already deceased is valid (*e*) and] a trust for keeping in repair a painted window or monument in a church is valid as a charitable gift, for it is for the interest of the public that the ornaments of the church should not be allowed to fall into decay (*f*).

28. **Personalty bequeathed to a charity.** — If a testator bequeath his personalty generally to such charitable purposes as the trustees should think proper, the trustees can exercise the power as to the *pure personalty* (*g*).

But the trustees cannot under the power apply the impure personalty to charitable institutions authorized to hold property of that description, unless the testator has indicated in the will that charities of that nature are among the objects intended to be benefited.¹

[29. **Trust partly for a lawful and partly for an unlawful purpose.** — If property be given upon trust to apply part thereof for an unlawful purpose, and to hold or apply the residue for a lawful purpose, then, unless the amount intended to be applied for the unlawful purpose can be

habitation bonds, 3 Mac. & G. note (*c*), page 100.

(*c*) Symes v. Hughes, 9 L. R. Eq. 475; Manning v. Gill, 13 L. R. Eq. 485; Haigh v. Kaye, 7 L. R. Ch. App. 469; Dawson v. Small, 18 L. R. Eq. 114; Taylor v. Bowers, W. N. 1876, p. 67.

(*d*) Rickard v. Robson, 31 Beav. 244; Lloyd v. Lloyd, 2 Sim. N. S. 255; Thompson v. Shakespeare, Johns. 612, 1 De Gex, F. & J. 399; Fowler v. Fowler, 33 Beav. 616; Fisk v. Attor-

ney-General, 4 L. R. Eq. 521; Hunter v. Bullock, 14 L. R. Eq. 45; Dawson v. Small, 18 L. R. Eq. 114; [Re Williams, 5 Ch. D. 735; Re Birkett, 9 Ch. D. 576; see Gott v. Nairne, 3 Ch. D. 278.]

[(*e*) Mussett v. Bingle, W. N. 1876, p. 170.]

(*f*) Hoare v. Osborne, 1 L. R. Eq. 585; Re Rigley's Trust, 15 W. R. 190.

(*g*) Lewis v. Allenby, 10 L. R. Eq. 668; Re Clark, 52 L. T. N. S. 406.

¹ Re Clarke, 52 L. T. N. S. 406; 54 L. J. Ch. 1080; Lewis v. Allenby, 10 L. R. Eq. 668.